

25STCV07815 25STCV07815

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 5, 2026

CASE NUMBER

25STCV07815

MOTION

Demurrer to First Amended Complaint

MOVING PARTY

Defendant General Motors LLC

OPPOSING PARTY

Plaintiff Eleazar

Martinez Mora

MOTION

Plaintiff Eleazar

Martinez Mora ("Plaintiff") brought the instant action against Defendant General Motors LLC ("Defendant"), alleging he bought a defective motor vehicle Defendant manufactured. Defendant demurs to the fourth and fifth causes of action in Plaintiff's first amended complaint. Plaintiff opposes the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Defendant relies extensively on trial court orders. "Neither federal district court procedures nor decisions are binding on this court." (Thomas G. Ferruzzo, Inc. v. Superior Court (1980) 104 Cal.App.3d 501, 503.) Likewise, "a written trial court ruling has no precedential value." (Santa Ana Hospital Medical Center v. Belshe (1997) 56 Cal.App.4th 819, 831.) The Court disregards these citations.

Fourth Cause of Action: Breach
of Implied Warranty of Merchantability

Defendant argues

the statute of limitations bars Plaintiff's claim for breach of the implied warranty of merchantability. The statute of limitations on a breach of warranty claim for consumer goods is four years. (Com. Code, § 2725, subd. (1).) The breach of an implied warranty accrues upon delivery of the goods, regardless of when the buyer discovers the breach. (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 129 (Cardinal Health).) "[U]nder [Commercial Code] section 2725, the general limitations rule for a breach of warranty cause of action is four years from the date the goods are delivered (regardless of the date the buyer discovers the breach), unless the 'warranty explicitly extends to future

performance of the goods and discovery of the breach must await the time of such performance.” (Ibid.; see also *Carrau v. Marvin Lumber & Cedar Co.* (2001) 93 Cal.App.4th 281, 291 [“[t]he vast majority of the courts ... have concluded that the ‘future performance’ exception to the four-year limitations period applies only when the seller explicitly has agreed to warrant its product for a defined period of time. These courts reason that California Uniform Commercial Code section 2725 reflects the drafters’ intention to establish a reasonable period of time—four years—beyond which sellers need not worry about stale warranty claims”].)

The Court notes, in his amended complaint, Plaintiff alleges he did not suspect his vehicle was defective beyond repair until shortly before filing this action. (First Amended Complaint, ¶ 33.) However, the breach of an implied warranty accrues upon delivery of the goods, regardless of when the buyer discovers the breach. (See *Cardinal Health*, supra, 169 Cal.App.4th at p. 134 [“Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods’”].)

Plaintiff alleges

he received the vehicle at issue on March 14, 2020. (First Amended Complaint, ¶ 6.) As concerning his implied warranty claim,

Plaintiff thus had until March 14, 2024 to file the complaint in this action. But Plaintiff did not do so until March 19, 2025.

In its December 3, 2025 order, the Court allowed Plaintiff to amend this cause of action. But Plaintiff has not appreciably amended the complaint to cure the deficiencies in the pleading with respect to the fourth cause of action. Accordingly, the Court sustains the demurrer to the fourth cause of action for being time-barred and concludes it is futile to permit Plaintiff to further amend the claim.

Fifth Cause

of Action: Fraud By Concealment

On

the other hand, the Court cannot resolve Defendant’s argument the fifth cause

of action is time-barred on demurrer.

In

this regard, as noted above, Plaintiff alleges he did not suspect the vehicle was defective beyond repair until shortly before filing this action. Under the delayed discovery rule, a claim does not accrue until “a plaintiff knew or should have known of the wrongful conduct at issue.” (April Enterprises, Inc.

v. KTTV (1983) 147 Cal.App.3d 805, 832.) Further, with respect to the fraud claim, the statute of limitations did not run while Defendant represented it could repair the defects with Plaintiff’s vehicle. (See

Cardinal Health, supra, 169 Cal.App.4th at pp. 133–134.) The Court cannot resolve the evidentiary issue of when Plaintiff knew or should have known of the claims against Defendant on demurrer.

However,

as Defendant points out, Plaintiff has not adequately alleged the claim for fraud because Plaintiff must allege fraud with particularity, which, as explained below, Plaintiff has not yet done. (Wilhelm v. Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) “There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336, internal quotations and citations omitted.)

In

this regard, Plaintiff alleges Defendant knew of the defect in the engine of the vehicle because it had exclusive knowledge of information not known to the public, and Defendant, nonetheless, concealed this defect from Plaintiff. (First Amended Complaint, ¶¶ 77, 82-83.) However,

a claim for fraud must result from “direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312.) Plaintiff has yet to allege specific facts to show he directly purchased the vehicle from Defendant, such that Defendant concealed these facts from him. Accordingly, the demurrer to the fifth cause of action is sustained, but Plaintiff will be given the opportunity to amend it.

The Court notes, in opposing the motion, Plaintiff

cites OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835 (OCM Principal), which is not on point. In that case, an investment bank made statements in an offering memorandum for a company's promissory notes, which were misleading due to the bank's failure to disclose other pertinent facts. The Court concluded the bank had a duty to disclose the company's "circumstances to potential purchasers." (Id. at p. 860.) In this case, however, Plaintiff does not allege Defendant "ma[de] partial representations but also suppress[ed] some material facts." (Id. at p. 859, internal quotations and citations omitted.) Instead, Plaintiff asserts Defendant had superior and exclusive knowledge of material facts not known to Plaintiffs. (Complaint, ¶¶ 77, 82-83.) Therefore, Plaintiff's claims are premised on a distinct theory of liability, and OCM Principal is not relevant.

Likewise, Plaintiff's reliance on Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094 (Bader) is misplaced. As the Court of Appeal noted in Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884 (Bjoin), the dicta in Bader "is too broad and vague to constitute a standard which is applicable in other cases." (Bjoin, supra, 113 Cal.App.5th at p. 904.)

As discussed above, in his fifth cause of action, Plaintiff has not established through his allegations the threshold facts regarding Plaintiffs' interactions with Defendant, such that Defendant concealed material facts from him. Therefore, the demurrer to this cause of action is sustained. However, Plaintiff will be permitted one more opportunity to amend this claim because the first amended complaint "does not on its face foreclose any reasonable possibility of amendment." (City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747.)

CONCLUSION AND ORDER

Defendant's demurrer to the fourth cause of action is sustained without leave to amend. The demurrer as to the fifth cause of action is sustained, but Plaintiff will have a further opportunity to amend it. Plaintiff is to file an amended complaint within 20 days of notice of this order.

Defendant is ordered to provide notice of the Court's ruling and to file proof of service of same.